

Smt Sayra Bano v. State of U.P. and Another

High Court of Judicature at Allahabad · Division Bench · 16 May 2024 · 2024:AHC:89089-DB · WRIT - C No. - 16464 of 2024 · **Writ disposed of; liberty to object under clause 6.5.**

HEADNOTE

A writ challenging the correctness of an electricity consumption bill is not entertained where the consumer has the remedy of filing an objection under clause 6.5 of the Uttar Pradesh Electricity Supply Code, 2005. The petition was disposed of with liberty to avail that procedure.

FACTUAL SUMMARY

Smt Sayra Bano filed a writ petition in the Allahabad High Court challenging a demand of electricity consumption charges raised by the electricity department through a bill dated 11 March 2024. She contended that there were no dues against her, yet a bill of Rs. 1,60,779 was issued in February/March 2024. The State of Uttar Pradesh and another were the respondents. The Division Bench considered whether it should entertain a challenge to the correctness of that bill.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

alternative remedy — billing objection

HOLDING

A writ petition challenging the correctness of an electricity consumption bill will not be entertained where the consumer has the remedy of filing an objection as prescribed by clause 6.5 of the Uttar Pradesh Electricity Supply Code, 2005. The petition was disposed of with liberty to avail that remedy. ¶ 3-4

PRINCIPLE TAGS

billing-objection-to-executive-engineer-under-6.5 A writ challenging the correctness of an electricity consumption bill is not entertained where the consumer has the remedy of filing an objection under clause 6.5 of the Uttar Pradesh Electricity Supply Code, 2005. The petition was disposed of with liberty to avail that procedure. ¶ 3-4

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE BILL DATED 11.03.2024 FOR RS. 1,60,779

Not examined on merits; petitioner left to the clause 6.5 objection procedure. ¶ 3-4